

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Paul R. Feeney and Michael S. Chaisson

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the Massachusetts Water Resources Authority to provide sewer services to a certain parcel of land in the town of Foxborough.

PETITION OF:

NAME:	DISTRICT/ADDRESS:
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>
<i>Michael S. Chaisson</i>	<i>1st Bristol</i>

SENATE No.

By Mr. Feeney and Mr. Chaisson of Foxborough, a joint petition (accompanied by bill) (subject to Joint Rule 12) of Paul R. Feeney and Michael S. Chaisson for legislation to authorize the Massachusetts Water Resources Authority to provide sewer services to a certain parcel of land in the town of Foxborough. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the Massachusetts Water Resources Authority to provide sewer services to a certain parcel of land in the town of Foxborough.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Subject to receipt of all approvals required under section 2 and following
2 satisfaction of all procedures adopted by the Massachusetts Water Resources Authority,
3 including the payment to the Authority of an entrance fee, the Authority may provide sewer
4 services through the town of Walpole to the property located in the town of Foxborough,
5 consisting of approximately 0.96 acres of land located at 212 North Street, which is more
6 particularly described by the Foxborough Board of Assessors on Map 5 as Lots 11 (21,000 sf)
7 and 12 (20,670 sf), which property is currently owned by KPE Realty Trust (William and
8 Catherine O'Brien-Trustees) or their nominee, successor, or assignee; provided, however, that
9 discharges shall not exceed 4,489 gallons per day unless an additional volume is approved by the
10 Authority. The Authority may allow the property to be used and serviced by the sewer system to
11 the same extent as parcels of property located within the district currently served by the

12 authority. All costs and expenses incurred for engineering, design and construction, inclusive of
13 all supervision, labor, equipment and materials, relative to the sewer tie-in shall be paid by KPE
14 Realty Trust, or its nominee, successor or assignee.

15 SECTION 2. The sewer connection to the town of Walpole's infrastructure and the
16 provision of sewer services by the authority for any discharges shall commence only after the
17 authority's board of directors has voted to approve the connection after having first made the
18 findings set forth in paragraph (c) of section 8 of chapter 372 of the acts of 1984 and having
19 made such other determinations in accordance with applicable policies of the authority and after
20 all required approvals have been received including, as applicable, the approval of the
21 community of origin, transporting community, all other local and state regulatory bodies where
22 required and the authority's advisory board.

23 SECTION 3. This act shall take effect upon passage.